

No. 20-12897

**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff / Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the Northern District of
Florida, Pensacola Division

Case No. 3: 18-cv-01466-TKW-MJF

**APPENDIX TO APPELLEE'S BRIEF
VOLUME IV: Bench Trial - Judge's Ruling
December 2, 2020**

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Index of Appendix to Appellee's Brief

Page

Excerpt Of Bench Trial - Judge's Ruling

1

PAGE NUMBERS ARE LOCATED AT BOTTOM OF EACH PAGE



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CERTIFICATE OF SERVICE

1 HEREBY CERTIFY that I have, on this 2nd day of December 2020, furnished a copy of the foregoing to the Appellant's Counsel, Braden K. Ball, via the Court's E-filing system.



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1 **UNITED STATES DISTRICT COURT**
2 **NORTHERN DISTRICT OF FLORIDA**
3 **PENSACOLA DIVISION**

4 DEEPGULF, INC., and TOKE OIL)
5 AND GAS S.A.,)
6)
7 Plaintiff/) Case No: 3:18-CV-1466/TKW
8 Counter-Defendant,)
9 v.) Pensacola, Florida
10) June 17, 2020
11) 1:53 p.m.
12 MARC M. MOSZKOWSKI,)
13)
14 Defendant/)
15 Counter-Plaintiff.)
16 _____)

17 **EXCERPT OF BENCH TRIAL - JUDGE'S RULING**
18 **BEFORE THE HONORABLE T. KENT WETHERELL, II**
19 **UNITED STATES DISTRICT JUDGE**
20 **(Pages 1 through 17)**

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P R O C E E D I N G S

(Following excerpt is The Court's ruling from the bench.)

THE COURT: All right. Thank you, counsel.

All right. Here's what I'm going to try to do. I've got a pretty good understanding of this case from dealing with it at summary judgment, thinking about it quite a bit before our pretrial conference and then talking at our pretrial conference, and then hearing the evidence I heard today. And I appreciate both your presentations. They were very helpful in crystalizing some things in my mind.

And so what I'm going to try to do is give you the findings that I would make in a written order and dispose of Count Two of the Counterclaim, which is the only remaining count that's left, and then will ask the parties to submit a proposed judgment which deals with the entire case.

Because there was one claim that I think that I did rule in favor of DeepGulf on with respect to the patents and things like that. And there will need to be some sort of declaration there. There would also need to be -- incorporated in the formal judgment, the disposition of other counts, for those who want to try their luck at the Eleventh Circuit. So that's the goal here.

This case has been pending a while. I know the parties have put a lot of time, energy to it, and this is my effort to help you get to that end sooner rather than later. My

01:55:25 1 intent would be that whatever judgment comes out of this count
01:55:30 2 will simply say, For the reasons stated on the record, it's
01:55:33 3 disposed of in this manner, rather than having additional facts.
01:55:36 4 And then the parties, if they need them for future cases or the
01:55:40 5 Eleventh Circuit, if they need to know why this count was
01:55:43 6 disposed, they will have it on the record rather than wasting my
01:55:48 7 energy typing up a detailed order. So that's the goal of this.

01:55:51 8 So in that spirit, here's how I see the case.

01:55:58 9 What we know for sure is that in 2005 there was an
01:56:01 10 agreement between DeepGulf and Mr. Moszkowski to pay him
01:56:05 11 \$120,000 a year. What we also know is in 2008 that agreement
01:56:10 12 was modified to increase his salary to \$132,000 a year. Then a
01:56:15 13 series of events happened that really aren't particularly
01:56:23 14 pertinent to the issue that I'm dealing with today; although,
01:56:26 15 they are pertinent to the people involved in this and explain a
01:56:29 16 lot of why we are where we are.

01:56:31 17 But in any event, for my purposes, I fast-forward to
01:56:34 18 2012 and the -- DeepGulf's Exhibit 2, which is the summary that
01:56:42 19 Mr. Howard prepared of the conversation that he and
01:56:46 20 Mr. Moszkowski had, which is confirmed through Mr. Moszkowski's
01:56:51 21 deposition testimony, for the most part. And to the extent
01:56:57 22 there's any inconsistencies, I find that what Mr. Howard told us
01:57:04 23 today is more consistent with the plain language of what's put
01:57:07 24 forward there, and I accept that as the credible understanding
01:57:09 25 of what the parties' agreement was.

01:57:11 1 And what that agreement was is that the parties agreed
01:57:14 2 not that they would book and accrue salary that they -- well,
01:57:22 3 excuse me. The agreement was twofold. One, that they would not
01:57:25 4 pay salary to Mr. Moszkowski or Mr. Howard, executive salaries.
01:57:29 5 Not only would they not actually pay it, they wouldn't book it
01:57:33 6 and accrue it so it wasn't adding up to unpaid salary. They
01:57:37 7 would essentially waive their entitlement to receive the salary,
01:57:41 8 and that would continue until, quote, the company had funds to
01:57:50 9 pay. And in return for that, what Mr. Moszkowski got was, you
01:57:58 10 know, twofold. One, his interest in the company, you know,
01:58:02 11 continuing to have some viability; and, secondly, he got an
01:58:05 12 agreement that the company would start paying him the debt that
01:58:09 13 it owed him unrelated to this unpaid salary.

01:58:13 14 So that's where we were on September 28th of 2012.
01:58:17 15 You know, I certainly had evidence that if I were to credit it
01:58:21 16 would suggest that Mr. Moszkowski's view was what the agreement
01:58:26 17 was, rather than Mr. Howard's, because there were entries that I
01:58:29 18 saw in the evidence of, quote/unquote, payroll being made after
01:58:34 19 the fact. I didn't give that much weight as actual payroll. I
01:58:41 20 viewed that more as just the -- kind of the indication on the
01:58:48 21 Wells Fargo. Kind of like when you go to Starbucks and you use
01:58:51 22 your debit card at Starbucks, sometimes it comes back with some
01:58:55 23 gibberish that you have to interpret to find out that that was
01:58:58 24 actually a Starbucks payment.

01:59:00 25 You know, this was clearly money that -- however these

01:59:04 1 programs work, and we didn't hear from anybody that told us how
01:59:06 2 they work, but I think it's fair to infer from the evidence that
01:59:09 3 the program somehow interacts with the company's bank account,
01:59:12 4 and it draws that money out. And so Wells Fargo sees that as
01:59:16 5 payroll, even though it may or may not be. So anyway, long
01:59:22 6 story short, I saw that evidence but didn't give that a lot of
01:59:25 7 credence in deciding whether it was payroll or, as Mr. Howard
01:59:31 8 testified, debt payments after that period of time.

01:59:39 9 You know, I certainly took into account the
01:59:42 10 cross-examination of Mr. Howard that -- where Mr. Boller pointed
01:59:48 11 out some inconsistencies in his testimony today regarding the
01:59:50 12 meaning of this agreement, was it a complete waiver of salaries
01:59:53 13 or was it really a deferral. I took that into account. My view
01:59:57 14 ultimately, that didn't undermine his credibility enough for me
02:00:03 15 to disregard that plain understanding that I have of the
02:00:08 16 agreement as being the agreement. So that's what we had in
02:00:11 17 2012.

02:00:12 18 So from September 28, 2012, going forward, there was
02:00:17 19 no obligation the company had to make payments until it had
02:00:23 20 funds to pay, which then brings us to the next point in time
02:00:29 21 that becomes relevant, and that's 2013, 2014. I don't think the
02:00:34 22 record was real clear on what the time frame was, but it was
02:00:37 23 certainly after 2012 and before 2016 when it -- I think it was a
02:00:42 24 Geocan contract, or there were other moneys coming into the
02:00:45 25 company. And the question is whether that provided, quote, The

02:00:51 1 company had funds to pay such that its obligation to begin
02:00:56 2 paying salary again was triggered.

02:00:58 3 And on that issue, I'm -- I've credited the testimony
02:01:03 4 of Mr. Howard that really the parties had a discussion and that
02:01:13 5 that money was to be used for other purposes rather than the
02:01:15 6 salary. So whether that was a modification of the modification
02:01:20 7 or whether it was simply a reflection of what the parties
02:01:24 8 originally understood is, I don't think, really critical to me.
02:01:29 9 The point is I'm crediting his testimony that it was an
02:01:34 10 understanding, either original or after the fact, that that
02:01:36 11 money was going to be used to keep the company afloat rather
02:01:40 12 than to pay salaries.

02:01:42 13 So to the extent the breach of contract claim is based
02:01:47 14 upon the 2012 agreement, I don't think the trigger necessary to
02:01:53 15 establish a breach was proven.

02:01:57 16 I would note that it's not entirely clear to me that
02:02:00 17 the pleadings -- I think with this being said, we've probably
02:02:05 18 amended the pleadings through consent multiple times multiple
02:02:09 19 ways here, because they really -- the pleading was: I have a
02:02:14 20 2005 contract entitling me to money. You didn't pay me the
02:02:18 21 money; and therefore, you owe it to me. We've since evolved it
02:02:22 22 more to the 2012 agreement, and then maybe even to the 2016
02:02:25 23 agreement. So in any event, that deals with the 2012
02:02:31 24 circumstances based upon what happened in 2013 and '14.

02:02:34 25 So that really brings us to what I think is the real

02:02:38 1 critical point; which is, in 2016 a board meeting was had.
02:02:43 2 Everybody agrees that a board meeting was had. I heard
02:02:51 3 Mr. Lott's testimony that he doesn't recall the substance of
02:02:54 4 Mr. Moszkowski's salary being discussed at that meeting, and he
02:02:58 5 didn't agree to what was represented in these papers. To give
02:03:04 6 Mr. Lott every benefit of the doubt, I'm going to think that
02:03:10 7 perhaps -- we know he arrived about an hour late. Obviously,
02:03:16 8 the 9:44 p.m. is a scrivener's error and it started at 9:44 a.m.
02:03:20 9 because it ended after noon, and that was consistent with what
02:03:24 10 Mr. Howard and Mr. Lott both told us. But to give him the
02:03:27 11 benefit of the doubt that he actually does fully remember what
02:03:32 12 happened at that meeting, it would be consistent with finding
02:03:36 13 that that was discussed before he got there.

02:03:41 14 So giving him the benefit of the doubt, I'd find that;
02:03:43 15 but, frankly, I didn't find that testimony particularly
02:03:46 16 credible. So if it didn't happen before he got there, which
02:03:52 17 would explain why he doesn't remember it, he just doesn't
02:03:56 18 remember that it actually happened. Because, really, the point
02:03:59 19 that Mr. Ball brought out on his closing argument I had flagged
02:04:05 20 in my notes as well: That irrespective of whether Mr. Lott
02:04:11 21 remembered that happening or was there when it happened,
02:04:14 22 Mr. Moszkowski testified in his deposition that it was a true
02:04:19 23 statement, what's reflected in the board meetings.

02:04:22 24 I don't have in the deposition designations that the
02:04:27 25 plaintiff, Mr. Moszkowski, gave me the qualification that you

02:04:32 1 read in your closing argument. I'm not suggesting that it
02:04:36 2 didn't actually happen; but if we accept the testimony that
02:04:41 3 Mr. Moszkowski gave on the stand through his depositions, I
02:04:44 4 don't have that qualification. But I will accept your
02:04:46 5 representation that he made that qualification. But at the end
02:04:51 6 of the day, I find persuasive the -- what's set forth in these
02:04:59 7 minutes as being the parties' most recent agreement. And what
02:05:02 8 that agreement says to me on its face, plainly and clearly, is
02:05:08 9 that Mr. Moszkowski would be entitled to back pay for unaccrued
02:05:12 10 salary after the company secures revenue or investor capital.

02:05:17 11 And that's important in two respects: One, it's
02:05:21 12 different than the 2012 agreement. And I think Mr. Howard
02:05:23 13 acknowledged that when I asked him the question that in 2012 the
02:05:27 14 agreement was we're not paying any salaries, we're not going to
02:05:31 15 accrue them, we're not going to do anything. It's as if you
02:05:33 16 don't earn that even or aren't owed that anymore.

02:05:39 17 2016 is different. 2016 acknowledges that there's a
02:05:41 18 period of unaccrued salary that Mr. Moszkowski, by virtue of the
02:05:45 19 2012 agreement, was not entitled to; by virtue of the 2016
02:05:51 20 agreement, he is entitled to. And so as I read that agreement,
02:05:54 21 it says that unaccrued salary, for any unaccrued salary. So
02:05:59 22 that goes all the way back to the point in time that they --
02:06:02 23 that the company stopped paying him. And I don't have that date
02:06:05 24 in front of me, but I believe it was some point in late 2012.

02:06:09 25 So from late 2012 going forward, that unaccrued salary

02:06:16 1 the company agreed in 2016. So within the statute of
02:06:18 2 limitations, they've chosen to bring things in that would
02:06:23 3 otherwise have been barred by the statute of limitations and
02:06:25 4 would otherwise not be owing under the 2012 agreement. And as a
02:06:29 5 result, that's the consideration that Mr. Moszkowski got for
02:06:33 6 entering into this agreement, to the extent that I need to deal
02:06:36 7 with that issue again.

02:06:38 8 So anyway, that's the agreement that the parties have:
02:06:42 9 Until after the company secures revenue or investment capital.
02:06:45 10 So that ultimately becomes the question: Has that trigger
02:06:49 11 occurred? Has the company accrued -- or, excuse me, secured
02:06:53 12 revenue or invested capital? And the evidence I heard today was
02:06:57 13 that, no, they have not. In fact, I've heard no evidence that
02:07:01 14 after 2016, after this agreement, that there were any revenue,
02:07:06 15 any investor capital, or anything else, such as a loan that has
02:07:11 16 come into the company.

02:07:12 17 So -- and I don't think that's inconsistent with what
02:07:17 18 Mr. Moszkowski said in the deposition and what I look to,
02:07:20 19 frankly, maybe erroneously, in the summary judgment order.
02:07:25 20 Because I think it's clear from his testimony that he was
02:07:29 21 talking about money coming into the company shortly after the
02:07:33 22 2012 agreement. I don't think he spoke to whether money has
02:07:37 23 come in after the 2016 agreement, and I've dealt with the money
02:07:41 24 that came in after the 2012 agreement.

02:07:46 25 So in any event, I find, really based upon undisputed

02:07:49 1 evidence, that there has been no revenue or investor capital
02:07:53 2 that would trigger the obligation the company has, and obligated
02:08:00 3 itself to in these minutes and reaffirmed through the testimony
02:08:04 4 here today, to pay that when those -- when those funds do come
02:08:07 5 in.

02:08:08 6 So where does that leave us? Based upon those
02:08:13 7 findings, I would find in favor of DeepGulf on the breach of
02:08:19 8 contract claim in Count Two of the Counterclaim.

02:08:24 9 That being said, it seems to me that what we've got
02:08:28 10 here and why I've argued until -- not argued -- why I've
02:08:34 11 suggested, as strongly as I could, that y'all need to figure out
02:08:37 12 a way to go your separate ways, because the company has an
02:08:42 13 obligation on which the statute of limitations has not run and
02:08:48 14 may never run until funds come into the organization.

02:08:52 15 Again, I'm not deciding that case because it's not
02:08:54 16 before me. There may be a claim that they have for wrongful
02:08:58 17 termination. I'm not deciding that issue because it's not
02:09:00 18 before me. But it just goes along with my pitch that I'm making
02:09:06 19 that there is -- you won the battle, but there's other battles
02:09:11 20 out there that you could lose.

02:09:12 21 And I understand the argument that, Judge, you screwed
02:09:16 22 up this \$345,000 out of East Timor. And maybe I did. Maybe the
02:09:22 23 Eleventh Circuit, you take that up, they'll agree with you,
02:09:24 24 they'll reverse it, we'll come back and have a trial about East
02:09:29 25 Timor. But I don't want to take money out of Mr. Ball's pocket,

02:09:35 1 and I don't want to take money out of the Bollers' pocket, but
02:09:37 2 it seems like both sides are throwing good money after bad
02:09:39 3 litigating an issue in a marriage that is irretrievably broken
02:09:45 4 and needs to be resolved.

02:09:46 5 That's my editorial comment for the day. I've
02:09:51 6 disposed of the only counterclaim before me.

02:09:53 7 Are there any -- I'm not asking either side to agree
02:09:56 8 with it. Are there any questions about the ruling from the
02:10:00 9 Moszkowski side?

02:10:02 10 MR. BOLLER: No, sir.

02:10:02 11 THE COURT: Any additional findings you think I need
02:10:04 12 to make?

02:10:06 13 MR. BOLLER: I can't think of any at this moment.

02:10:07 14 THE COURT: Okay. Same questions.

02:10:10 15 MR. BALL: No, Your Honor. I may need you to describe
02:10:12 16 exactly what you want from us again, because I'm not sure I
02:10:16 17 understood it, in terms of paperwork coming from us in the
02:10:18 18 future.

02:10:19 19 THE COURT: What we need -- I mean, what I've done
02:10:21 20 thus far is I've entered a summary judgment order that disposed
02:10:26 21 of all of the counts except this one. I've now orally disposed
02:10:31 22 of this count. And so what I think we need to give the parties
02:10:36 23 an opportunity to go up to wherever they want to go next is an
02:10:41 24 actual judgment that memorializes the disposition and tells the
02:10:47 25 parties to go hence without day. And it seems to me that that

02:10:52 1 needs to do two things. It needs to do it in two ways. That,
02:10:58 2 first, I need something the parties come together on on the -- I
02:11:01 3 think it was the Count One that dealt with the declaratory
02:11:06 4 judgment on --

02:11:09 5 MR. BALL: Patents.

02:11:10 6 THE COURT: -- patents and things of that nature. So
02:11:13 7 whatever consistent with -- what I envision is a short document
02:11:16 8 the parties would prepare that says, you know, based upon the
02:11:21 9 rulings in the summary judgment order and the oral findings made
02:11:24 10 after the bench trial, it is ordered that, as to Count One,
02:11:30 11 whatever declaration you think you're entitled to there. And
02:11:35 12 clear the form through Mr. Boller.

02:11:37 13 MR. BALL: Yes, sir.

02:11:38 14 THE COURT: As to whatever -- however the disposition
02:11:41 15 would be, you know, judgment is entered into favor of Moszkowski
02:11:46 16 on whatever counts I entered summary judgment. Judgment is
02:11:49 17 entered in DeepGulf on the ones I've entered judgment, summary
02:11:50 18 judgment or --

02:11:51 19 MR. BALL: But we don't need to incorporate findings
02:11:53 20 of facts in this final judgment?

02:11:54 21 THE COURT: No, incorporate the -- incorporates oral
02:11:55 22 findings made here today and incorporates the findings from the
02:12:02 23 summary judgment order. At that point you'll have an appealable
02:12:03 24 order that disposes of all issues and can go forward without me
02:12:07 25 or you having to -- or y'all having to prepare some long

02:12:12 1 detailed --

02:12:15 2 MR. BALL: Thank you.

02:12:15 3 THE COURT: -- federal order. Judge Rodgers, I'm sure
02:12:20 4 that was a very interesting order to read, but we don't need
02:12:23 5 that in this case at this point.

02:12:25 6 Is that clear as to what you need it to do?

02:12:28 7 MR. BALL: I believe so, Your Honor.

02:12:30 8 MR. BOLLER: The only question that occurs to me, if
02:12:34 9 Your Honor please, and I think Your Honor said as much, that the
02:12:39 10 judgment on the Counterclaim, Count Two, is in favor of
02:12:42 11 DeepGulf.

02:12:44 12 THE COURT: Correct.

02:12:44 13 MR. BOLLER: But Your Honor also as a matter of fact
02:12:47 14 determined that the 2016 agreement is still enforceable subject
02:12:54 15 to the triggering condition. And so would the Court consider
02:13:01 16 making a determination -- I mean, we have a fixed set of time
02:13:06 17 and a number certain -- as to what would be owed between the
02:13:10 18 time of last payment and the time of termination without pay to
02:13:14 19 Moszkowski if the trigger occurs, as unlikely as that is?

02:13:19 20 But I guess what I'd like to see -- or I'd like to
02:13:23 21 hear Your Honor's thoughts about that being reflected in, as
02:13:28 22 Your Honor just articulated, as a matter of either fact or -- a
02:13:33 23 finding of fact. You didn't say a specific number, but I think
02:13:37 24 we could all agree that it's calculable, amount certain.

02:13:41 25 THE COURT: All right. Mr. Ball.

02:13:43 1 MR. BALL: Your Honor, I don't think that that issue
02:13:45 2 is ripe before this Court at this time. I mean, if revenue
02:13:49 3 comes in tomorrow of \$600 million and we don't pay
02:13:54 4 Mr. Moszkowski, we may be back in here again deciding -- you
02:13:57 5 asked Mr. Howard that question. I don't know what would trigger
02:14:00 6 that, but I don't think the Court can issue additional judgment
02:14:03 7 or something like that that is conditioned upon what might
02:14:07 8 happen in the future. I don't think that's within...

02:14:10 9 THE COURT: I guess my view on it, Mr. Boller, is
02:14:13 10 this. I've made the findings that I've made. And I think
02:14:22 11 you're probably right that from that point forward, it's simply
02:14:25 12 a mathematical calculation; and you've got the ability to get a
02:14:32 13 copy of those portions of the transcript where I made those
02:14:34 14 findings and Mr. Howard conceded what he conceded.

02:14:38 15 And I suspect if 600 million comes into the company
02:14:43 16 tomorrow, there won't be a lawsuit. They'll write the check
02:14:45 17 that you give him the mathematical calculations for and you go
02:14:49 18 about your way. But I don't think I need to make that finding.
02:14:52 19 I've given all the prerequisite findings to make that math, but
02:14:58 20 I don't like doing math when I don't have to.

02:15:00 21 MR. BOLLER: Understood.

02:15:00 22 MR. BALL: Thank you.

02:15:02 23 THE COURT: All right. Time frames to do all that, to
02:15:09 24 get a proposed judgment.

02:15:13 25 MR. BOLLER: Why don't you take a swing first --

02:15:15 1 MR. BALL: Okay. No problem.

02:15:15 2 MR. BOLLER: -- since your involvement is going to be
02:15:18 3 more significant than ours.

02:15:22 4 MR. BALL: Yeah, I can -- we're leaving to go out of
02:15:25 5 town on the 25th, which is Thursday. So let's say we submit
02:15:30 6 something by next Wednesday. Would that be -- a final product
02:15:34 7 to you, Your Honor, by next Wednesday?

02:15:37 8 THE COURT: Whatever is suitable to you is suitable to
02:15:40 9 me.

02:15:41 10 MR. BOLLER: Have to me to review by --

02:15:43 11 MR. BALL: Monday maybe? I mean, hopefully that will
02:15:45 12 give you time to look at it. If not, then we'll --

02:15:46 13 THE COURT: Why don't we -- what are we today? We're
02:15:49 14 on a Wednesday. Why don't I give you two weeks.

02:15:52 15 MR. BALL: Okay.

02:15:52 16 THE COURT: That may be more than necessary, but
02:15:55 17 that's an outside -- outside time frame.

02:15:58 18 So you'll get me a proposed judgment in two weeks. I
02:16:00 19 will look at it. If there are any objections to the form, have
02:16:04 20 them noted in whatever motion or transmittal that you send, and
02:16:08 21 I'll deal with that. If necessary, we can get back on the phone
02:16:11 22 and talk. I'm expecting it probably won't be necessary. And
02:16:16 23 then I will get that entered, and y'all can go wherever you need
02:16:19 24 to go next.

02:16:20 25 Anything else?

02:16:21 1 MR. BOLLER: Thank you, Judge.

02:16:22 2 MR. BALL: Pleasure to work with you, Your Honor.

02:16:26 3 THE COURT: All right. Well, thank you both.

02:16:27 4 I'm going to leave with Paula the -- what I have. I
02:16:31 5 pulled out the exhibits that were not introduced, and they will
02:16:36 6 be part of the record as offered but excluded. So in the event
02:16:41 7 that that becomes an issue on appeal, the appellate court will
02:16:44 8 have them. But I'm going to give her the notebooks I have.

02:16:47 9 The Moszkowski notebook has the exhibits pulled out.
02:16:51 10 And then on top of that is the two impeachment exhibits, the
02:17:05 11 Moszkowski deposition experts. And the DeepGulf book has the
02:17:09 12 deposition excerpts on top of it, and the excluded ones are
02:17:14 13 piled separately.

02:17:14 14 So y'all clear that with Paula so the appellate court
02:17:18 15 has whatever it needs to have in the record and doesn't have
02:17:21 16 anything it shouldn't have.

02:17:24 17 And if nothing further, we can be adjourned.

02:17:26 18 MR. BALL: Thank you, Your Honor.

02:17:28 19 THE COURT: Thank y'all.

02:17:29 20 *(Proceedings adjourned at 2:17 p.m.)*

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1 I hereby certify that the foregoing is a true and correct
2 transcript of the stenographically reported proceedings held in
3 the above-entitled matter, pursuant to the provisions of Section
4 753, Title 28, United States Code.

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6/23/20

6 Julie A. Wycoff, RMR, CRR
7 Official U.S. Court Reporter

8 Date